



Notification Waiver Determination

United States – Australia Gallium

Acquisition	Alcoa Gallium Holdings Pty Ltd (a wholly owned subsidiary of Alcoa of Australia Limited (AoA)), the United States Department of War (DOW), and the Australian Government (through Export Finance Australia (EFA)) applied for a notification waiver in respect of their proposed acquisition of: • shares in a recently incorporated Australian special purpose vehicle, United States-Australia Gallium Pty Ltd (United States-Australia Gallium SPV), and • an entitlement to a proportionate share of gallium produced by a proposed gallium production plant next to AoA's Wagerup alumina refinery in Western Australia to be developed, constructed and operated by an unincorporated joint venture between United States-Australia Gallium SPV and Japan Australia Gallium Associates Pty Ltd, as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	21 May 2026

Parties to the Acquisition	AoA is a major alumina and aluminium producer, and its main operations are mining bauxite at two locations in the Darling Range, Western Australia, refining bauxite into alumina at two refineries in Western Australia, operating shipping terminals at Kwinana and Bunbury in Western Australia and Portland in Victoria, and holding a 55% interest in the Portland aluminium smelter in western Victoria. The DOW is a United States government agency. EFA is the Australian Government's export credit agency, whose purpose is to support Australian export trade, overseas investment, and infrastructure development that benefits Australia.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application, and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information currently before it, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular, the Acquisition seeks to introduce a new

	producer and supplier of primary gallium in Australia and does not involve the horizontal aggregation of any existing gallium production capacity. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.
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**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)
of the Act**